ARTICLE 28. CONSENT AGENDA

To see if the Town will vote to amend Chapter 6, Finances and Fiscal Procedures, of the Code of By-Laws of the Town of Winchester, through the addition of Subsection 6.5(g) of Section 6-6, Departmental Revolving Funds as shown below; or take any other action in relation thereto.

(g) School Transportation Revolving Fund. There shall be a separate fund called the School Transportation Revolving Fund for the use of the School Department. The Comptroller shall establish the School Transportation Revolving Fund as a separate account and shall credit the fund with all fees and charges paid by parents and guardians for student transportation. The fees and charges are assessed by the School Committee. During each fiscal year, the Superintendent of Schools, under the direction of the School Committee, may incur liabilities against and spend monies from the School Transportation Revolving Fund for the costs of providing regular school day transportation, including contracted transportation services, vehicle leases and maintenance, fuel, routing and registration software, routing management, and the administration of the transportation fee program. Partial salaries and wages of not more than one full-time employee may be paid from the fund. The Superintendent of Schools shall report annually to the School Committee and to the Comptroller on the receipts credited to and the expenditures charged against the fund. The School Transportation Revolving Fund shall operate for fiscal years that begin on or after July 1, 2027. At the conclusion of the fiscal year, any remaining funds shall remain in the revolving fund and shall not revert back to the general fund.

(School Committee)

MOTION: MOVED AND SECONDED to approve Article 28 as written in the warrant.

BACKGROUND: *The School Department charges families a fee for regular school-day bus transportation. Those fees are currently held in a separate school account, Fund 0625. The current practice has been to segregate the funds; adopting this bylaw would bring the current practice into compliance with M.G.L. c. 44, § 53E½ by holding transportation fees separately from the general fund in a revolving fund. This change will also provide a spending limit established by Town Meeting. That statute requires a bylaw approved by Town Meeting.*

This article adds a transportation fund to the six revolving funds already authorized in Section 6-6 and follows the same structure as the others. It identifies the receipts credited to the fund, the purposes for which the fund may be spent, the officer authorized to spend from it, and the reporting required.
The article does not set the transportation fee or authorize any spending. Fees are set by the School Committee.

Bylaws take effect after approval by the Attorney General under M.G.L. c. 40, § 32. The fund would operate for fiscal years that begin on or after July 1, 2027. If this bylaw isn't accepted, then the fees and charges generated will no longer be segregated and will be general fund revenue (budgeted as part of the local receipts "Departmental Revenue – Schools").

2/3rd Vote Required